

LEGAL OPINION

TO: Ms. Muna

FROM: [Your Name], Advocate

DATE: December 2025

RE: Challenge to National Urban Development Authority's Urban Compliance Directive and Closure of Muna Beauty Supplies

1. INTRODUCTION

I have been instructed to advise you on the legality of the actions taken by the National Urban Development Authority (NUDA) in issuing the Nationwide Urban Compliance Directive (NUCD) and the subsequent closure of your business, Muna Beauty Supplies, by county enforcement officers purportedly acting on NUDA's instructions.

This opinion examines the constitutional and statutory basis of NUDA's actions and identifies available legal remedies through judicial review proceedings.

2. FACTUAL BACKGROUND

The salient facts are as follows:

- NUDA was established in 2025 through an amendment to the Urban Areas and Cities Act with a mandate to "coordinate national urban planning standards."
- NUDA issued the NUCD requiring all small and medium-sized businesses in urban centres to obtain an Urban Operating Certificate (UOC) within 60 days and pay a 3% "urban efficiency levy" on annual revenue.
- The Directive threatened immediate cessation of operations for non-compliance.
- The Directive was published only on NUDA's website and social media platforms, without a Gazette Notice, public participation, or consultation with county governments or stakeholders.
- County enforcement officers shut down Muna Beauty Supplies without providing reasons or an avenue for appeal.

- Leaked correspondence suggests the Directive was designed to displace local traders in favour of multinational retail corporations.
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3. LEGAL ISSUES

The following legal issues arise for determination:

1. Whether NUDA acted within its statutory powers in issuing the NUCD and imposing the UOC requirement and urban efficiency levy;
 2. Whether NUDA complied with procedural requirements for the promulgation of statutory instruments;
 3. Whether the closure of Muna Beauty Supplies violated your constitutional right to fair administrative action;
 4. Whether NUDA acted in bad faith or for ulterior motives in issuing the Directive; and
 5. What remedies are available to you.
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4. LEGAL ANALYSIS

4.1 Substantive Ultra Vires: NUDA Acted Beyond Its Statutory Powers

Legal Framework

The doctrine of ultra vires is a fundamental principle of administrative law. An administrative body derives its powers from statute and can only exercise those powers expressly or impliedly granted by its enabling legislation. Any action taken outside this scope is void ab initio. This principle was affirmed in *Republic v. Kenya National Examinations Council ex parte Geoffrey Kuria Njoroge* [2016] eKLR, where the Court held that administrative bodies must act within the four corners of their enabling statute.

Application to Facts

The Urban Areas and Cities Act, as amended, grants NUDA the mandate to "coordinate national urban planning standards." This is a facilitative and harmonizing function, not a regulatory or enforcement power. The powers purportedly exercised by NUDA in issuing the NUCD far exceed this limited mandate in two critical respects:

a) Imposition of the Urban Efficiency Levy

The levy constitutes taxation. Under Article 210 of the Constitution, no tax or licensing fee may be imposed except under legislation. The power to tax is a sovereign power that must be expressly conferred by Parliament. NUDA's enabling statute does not grant it power to levy taxes or fees. The Supreme Court in *Anarita Karimi Njeru v Republic* [1979] eKLR emphasized that taxation powers cannot be implied and must be expressly granted.

By imposing a 3% levy on annual revenue, NUDA has arrogated to itself legislative powers of taxation that it does not possess. This is substantive ultra vires.

b) Licensing Requirement (Urban Operating Certificate)

The requirement to obtain a UOC amounts to a licensing regime. Licensing and regulation of businesses within urban areas falls within the functional jurisdiction of county governments under the Fourth Schedule to the Constitution (county trade development and regulation). NUDA has no statutory basis to impose licensing requirements on businesses, particularly when such power would usurp the constitutional functions of county governments.

The Supreme Court in *Speaker of the Senate & another v Attorney-General & 4 others* [2013] eKLR held that national government entities cannot assume functions constitutionally assigned to county governments without express legislative authority.

Conclusion

The NUCD is void ab initio for being issued in excess of NUDA's jurisdiction. NUDA's actions constitute a usurpation of powers not conferred upon it by statute.

4.2 Procedural Ultra Vires: Failure to Comply with Mandatory Procedural Requirements

Legal Framework

The Statutory Instruments Act, 2013, governs the making of subsidiary legislation in Kenya. Section 4 requires that statutory instruments be published in the Kenya Gazette. Sections 4A and 5 mandate public participation before any regulation is made. Additionally, Article 10(2)(a) of the Constitution establishes public participation as a national value and principle of governance.

The Constitution (Article 47) and the Fair Administrative Action Act, 2015 (Section 4), further require that administrative action affecting rights must be preceded by adequate notice and opportunity to make representations.

Application to Facts

NUDA's conduct violated these procedural safeguards in multiple respects:

a) Failure to Gazette

The NUCD was published only on NUDA's website and social media pages. This does not satisfy the publication requirement under the Statutory Instruments Act. Without proper gazettement, the Directive has no legal force.

b) Absence of Public Participation

NUDA conducted no public participation whatsoever. There were no stakeholder consultations, no opportunity for affected businesses to make representations, and no consultation with county governments whose constitutional mandate would be affected.

Kenyan courts have consistently held that failure to facilitate meaningful public participation renders administrative action unconstitutional. In *Institute of Social Accountability & 4 others v National Assembly & 4 others* [2015] eKLR (the "Kiambu County Finance Bill case"), the Court declared a Finance Bill null and void for lack of public participation, holding that the requirement is substantive, not merely procedural.

Similarly, in *Mui Coal Basin Local Community & 2 others v Permanent Secretary Ministry of Energy & 17 others* [2015] eKLR, the Court emphasized that public participation must be real, not tokenistic, and that affected communities must be meaningfully engaged.

c) Failure to Comply with Statutory Instruments Act Requirements

If the NUCD is characterized as a statutory instrument (which it purports to be), Section 11 of the Statutory Instruments Act requires that it be laid before Parliament for scrutiny. There is no indication that this occurred.

Conclusion

The NUCD is procedurally defective and unconstitutional. The complete absence of public participation and failure to comply with statutory requirements for subsidiary legislation render it null and void.

4.3 Violation of the Right to Fair Administrative Action (Article 47)

Legal Framework

Article 47 of the Constitution guarantees every person the right to administrative action that is expeditious, efficient, lawful, reasonable, and procedurally fair. Where rights are affected, individuals are entitled to be given written reasons for the action. The Fair Administrative Action Act, 2015, operationalizes this constitutional right.

Section 4 of the Fair Administrative Action Act requires that before an administrative action that adversely affects rights is taken, the administrator must give notice, provide reasons, and afford an opportunity to make representations.

Application to Facts

Your business was shut down by county enforcement officers claiming to act on NUDA's instructions. You were not:

- Given prior notice that closure was being contemplated;
- Provided with written reasons for the closure;
- Afforded an opportunity to be heard or make representations before the closure; or
- Informed of any avenue for appeal or review.

This conduct violates the very essence of Article 47. In *Kenyatta University v Public Universities Inspectorate Board & 4 others* [2020] eKLR, the Court held that the right to be heard (*audi alteram partem*) is sacrosanct in administrative law and that administrative action taken without affording a hearing is void.

The immediacy of the closure—with no prior warning—is particularly egregious. The rules of natural justice require that no person be condemned unheard. This principle was affirmed in *Owners of the Motor Vessel 'Lillian S' v Caltex Oil (Kenya) Ltd* [1989] KLR 1, where the Court of Appeal held that the right to a hearing is fundamental and cannot be dispensed with except in the most exceptional circumstances.

Conclusion

The closure of Muna Beauty Supplies without notice, reasons, or a hearing violates Article 47 of the Constitution and constitutes a flagrant breach of the principles of natural justice.

4.4 Bad Faith and Abuse of Discretion

Legal Framework

Administrative discretion must be exercised honestly, in good faith, and for the purpose for which it was conferred. When discretion is exercised for an ulterior or improper motive, it constitutes bad faith and renders the decision voidable. This principle derives from the doctrine that power must be exercised for proper purposes.

In *Mubango v Chief Licensing Authority* [1985] KLR 279, the Court held that administrative discretion must be exercised *bona fide* for the public good and not for collateral purposes.

Application to Facts

The leaked emails revealing that NUDA officials held private meetings with multinational retail corporations suggest that the NUCD was not issued for legitimate urban planning purposes but rather to

displace local traders and create market space for foreign corporations.

If this is proven, it demonstrates that:

- NUDA exercised its purported powers for an improper purpose (favouring multinational corporations over local businesses);
- NUDA acted in bad faith by disguising a commercial agenda as a regulatory measure;
- NUDA's discretion was tainted by improper considerations (the interests of multinational corporations rather than the public interest).

The Supreme Court in *Trusted Society of Human Rights Alliance v Attorney General & 2 others* [2012] eKLR held that administrative action motivated by improper considerations or ulterior motives is unconstitutional and must be set aside.

Your case is particularly compelling because you are a small, women-owned business—precisely the type of vulnerable enterprise that should be protected, not targeted. The apparent motive to displace local businesses in favour of multinational corporations contradicts the constitutional values of equity, inclusiveness, and social justice under Article 10 of the Constitution.

Conclusion

If the evidence of improper motive is substantiated, NUDA's actions constitute an abuse of power and bad faith, rendering the NUCD voidable on this ground alone.

5. AVAILABLE REMEDIES

Based on the above analysis, I advise that you institute judicial review proceedings under Article 23 of the Constitution (for enforcement of fundamental rights) and the Fair Administrative Action Act, 2015. You should seek the following prerogative orders and reliefs:

5.1 Certiorari

An order of certiorari to quash the NUCD on grounds that it is:

- Ultra vires (beyond NUDA's powers);
- Unconstitutional for violating Articles 10, 47, and 210 of the Constitution;
- Procedurally defective for lack of public participation and non-compliance with the Statutory Instruments Act; and
- Tainted by bad faith and improper motive.

5.2 Prohibition

An order of prohibition restraining NUDA, county enforcement officers, and any other persons from enforcing the NUCD or taking any action pursuant to it.

5.3 Mandamus

An order of mandamus compelling NUDA to:

- Comply with constitutional and statutory requirements before issuing any regulatory directive; and
- Facilitate public participation in accordance with the law.

5.4 Declaration

A declaration that:

- The closure of Muna Beauty Supplies was unconstitutional and in violation of Article 47;
- NUDA lacks statutory authority to impose licensing requirements or levy taxes on businesses;
- The NUCD is null and void ab initio; and
- Your constitutional rights have been violated.

5.5 Compensatory Remedies

- General damages for violation of your constitutional rights;
- Special damages for economic losses suffered due to the unlawful closure of your business (to be particularized); and
- Costs of the suit.

5.6 Conservatory Orders

Pending the hearing and determination of the judicial review application, you should apply for interim orders:

- Suspending the operation of the NUCD;
- Restraining county enforcement officers from interfering with your business operations; and
- Compelling NUDA to allow you to reopen Muna Beauty Supplies.

6. PROSPECTS OF SUCCESS

I am of the considered opinion that your case has strong merit on all grounds canvassed above. The legal

defects in NUDA's actions are fundamental and pervasive. Kenyan courts have consistently upheld constitutional and procedural safeguards in administrative law, particularly where rights of citizens and small businesses are affected.

The combination of substantive ultra vires, procedural irregularities, denial of fair administrative action, and apparent bad faith creates a compelling case for judicial intervention.

7. CONCLUSION AND RECOMMENDATION

NUDA's actions in issuing the NUCD and the subsequent closure of your business are unlawful, unconstitutional, and violate fundamental principles of administrative justice. The Directive is void ab initio for exceeding NUDA's statutory mandate, and the procedure followed was fundamentally flawed.

I strongly recommend that you immediately file judicial review proceedings in the High Court seeking the remedies outlined above. Given the urgency of the matter and the ongoing harm to your business, the application should include a prayer for interim conservatory orders.

I am prepared to draft and file the necessary court papers upon your instructions.

Respectfully submitted,

[Your Name]

Advocate of the High Court of Kenya

Date: December 2025

8. ANNEXURE: KEY LEGAL AUTHORITIES

Constitutional Provisions:

- Article 10 (National values and principles of governance)
- Article 47 (Right to fair administrative action)
- Article 210 (Taxation powers)
- Fourth Schedule (Functions of county governments)

Statutes:

- Fair Administrative Action Act, 2015

- Statutory Instruments Act, 2013
- Urban Areas and Cities Act (as amended)

Case Law:

- *Institute of Social Accountability & 4 others v National Assembly & 4 others* [2015] eKLR
- *Mui Coal Basin Local Community & 2 others v Permanent Secretary Ministry of Energy & 17 others* [2015] eKLR
- *Republic v Kenya National Examinations Council ex parte Geoffrey Kuria Njoroge* [2016] eKLR
- *Kenyatta University v Public Universities Inspectorate Board & 4 others* [2020] eKLR
- *Speaker of the Senate & another v Attorney-General & 4 others* [2013] eKLR
- *Anarita Karimi Njeru v Republic* [1979] eKLR
- *Trusted Society of Human Rights Alliance v Attorney General & 2 others* [2012] eKLR
- *Mubango v Chief Licensing Authority* [1985] KLR 279
- *Owners of the Motor Vessel 'Lillian S' v Caltex Oil (Kenya) Ltd* [1989] KLR 1